EASTERN CONTRACTOR SERVICES

Proposal

121 Bartley Flanders Road
Flanders, NJ 07836
Phone: (866) 446-7858 Fax: (973) 361-0206
www.EasternInsulation.com
License # 13VH06447600

Client ID: MONT01
Montana Contracting
175 N Route 9W
Suite 7
CONGERS, NY 10920

Job # 7390370
28 Bayard Lane
Ranch 3 Car Attached
MONTEBELLO, NY 10901

Prepared 4/28/2025 by Frank Johnstone (973) 985-2268

PLEASE CHECK THE PHASE(S), UPGRADE(S), AND OR OPTION(S) DESIRED FOR JOB:

******* Phase: Spray Foam Insulation *******

Workarea	Material
Block Eaves	R-19 16"x96" Unfaced
Roof Rafters	6.5" Closed Cell Spray Foam R-49.00 Nominal
Work Area Notes: Attic Over The Garage Is Included	
Overhangs	6.5" Closed Cell Spray Foam R-49.00 Nominal
Crawl Space Ceiling	6.5" Closed Cell Spray Foam R-49.00 Nominal

Phase Total : **$64,650.00** ☐

Items listed below include option(s). Signify desired options by initialing the space to the right of that item. Selected options are to be added to the contract price. Return this signed copy with the Job Proposal.

Phase	Work Area	Inventory Item	Type	Additional Charge	
Crawl Space Ceiling		No-Burn Plus Thermal Barrier (Sq Ft per Gallon)	Option	$5,400.00	☐
Roof Rafters		No-Burn Plus Thermal Barrier (Sq Ft per Gallon)	Option	$6,890.00	☐

******* Phase: Fiberglass Batt Insulation *******

Workarea	Material
Exterior 2x6 Walls	R-21 15" x 93" - Kraft - Batts
Attic Gable Walls	R-21 15" x 93" - Kraft - Batts
Attic Gable Walls	FSK SHIELD
Work Area Notes: Installed Over R21	
Exterior Garage Walls	R-21 15" x 93" - Kraft - Batts
Fireblock Vertical Penetration	Draft Stop & Gap Foam
Tub Traps	3" x 16" x 48" Sound & Fire Mineral Wool

Phase Total : **$4,575.00** ☐

******* Phase: Air Sealing *******

Workarea	Material
Windows / Doors	Foam Windows and Doors
Corners, T-Walls, Base Plates	White Latex Caulk

Phase Total : **$340.00** ☐

The bitterness of poor quality remains long after the sweetness of low prices are forgotten.

A 50% DEPOSIT IS DUE BEFORE WE START WORK, BALANCE WILL BE DUE BASED ON TERMS GIVEN.

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TERMS AND CONDITIONS:

Eastern Contractor Services does business under the names Eastern Waterproofing, Eastern Insulation, Four Seasons Insulation, Eastern Spray Foam, Eastern Aluminum and Eastern Garage Doors. For the purposes of this agreement we will be referred to as Subcontractor. (1) All agreements are conditional upon strikes, accidents, proper working conditions supplied us, acts of government, acts of God, or other delays or conditions beyond our control. Subcontractor will not be responsible for delays due to weather conditions. It is understood that weather can prohibit the application and, therefore, temporary heat will be provided at no expense to Subcontractor, or the contractor must be willing to wait for warmer weather. (2) Providing RESCHECK energy codes and any necessary permits are the sole responsibility of the builder or homeowner. If the RESCHECK report or permits are not supplied to Subcontractor we will not be responsible for failure to comply with code. (3) Scope is limited to that which is defined in proposal. (4) Hoisting charges, if any are excluded unless specifically detailed in proposal. Subcontractor will provide labor to unload and distribute its material but will not be responsible for skip, crane, hoist, or boom charges, or operator thereof for material or personnel. (5) Fire Blocking, Firestopping and Fire Rated Caulking are not included in scope of work unless specifically listed in the scope of work. Draftstopping, if included in our scope of work, includes packing vertical penetrations through top and bottom plates with mineral wool or e136 caulk only. (6) Subcontractor will not be responsible for any sprinkler lines or plumbing lines, especially frozen pipes, as it is our recommendation that these pipes are installed within heated spaces of the building (defined as spaces to be maintained at 50 degrees Fahrenheit). It is further recommended that the water and plumbing pipes not be installed in walls, ceilings, or floors adjacent to unheated spaces. in any event, an insulation contractor cannot warrant or guarantee that the water and plumbing pipes will not freeze, burst, or cause loss of life, damages to property, or loss of the use of property or any other damages from any other cause. (7) PLEASE NOTE: For spray foam proposals, all material thicknesses specified are nominal thicknesses. To achieve the specified R-Value and Thickness, an average of the entire assembly will be used. (8) Eastern is not responsible for areas that cannot be properly sealed or insulated due to design flaws or work being done out of proper sequence. (9) When spraying the roofline with spray polyurethane foam, Subcontractor is not responsible for researching the roofing manufacturer's recommendations regarding ventilation and will not be liable for any roofing materials warranty. (10) Both parties agree that upon discovery of a waterproofing product failure or deficiency, homeowner or contractor will submit same to the products warranty program, prior to instituting and legal action against Subcontractor. Failure to do so shall forfeit purchaser's rights to pursue legal action against Subcontractor.(11) Trash removal charges, if any, are excluded. Subcontractor will provide labor to clean up and centrally locate its trash and debris, but will not be responsible for dumpster, skip, receptacle, trash chute, or other related expenses. (12) Subcontractor will guarantee workmanship for one year. This contract, however, does not accept responsibility for any of our work that has been altered, or removed and not replaced correctly by others.

In existing homes, when installing blown in insulation or laying in fiberglass batt insulation, due to deteriorated building materials, uncertain framing, and inconsistent wiring in existing homes, Eastern shall not be responsible for any damages done as a consequence of our work. These damages include but are not limited to: cracked or broken shingles, bent or broken siding, cracked drywall or plaster, and cut or damaged electrical wires

(PAYMENT TERMS)

If the course of this contract extends beyond 6 months, actual material price or labor escalation may, upon written notice, be added thereto without jeopardy of contract to seller. No back charges or pro-rata expense charges are to be made against seller unless specifically agreed upon to incurring such expense. We have a minimum trip charge of $350.00. If crews are sent to a job and no work can be done due to circumstances out of our control this minimum charge will apply. If material is delivered upon confirmation from client and the job is postponed requiring material to be picked up and restocked, this minimum charge will apply. Any stolen or damaged material will be the sole responsibility of the client. In the event any bill is not paid within 30 days from completion of job, Subcontractor has the right to add a finance charge of 1 1/2% per month to the bill. If this account is placed in the hands of an attorney or bonded collection agency purchaser agrees to pay collection fees of 30% on the unpaid balance, plus costs and disbursements of said action. This Agreement will be construed under the substantive law of the State of New Jersey, without regard to conflicts of law rules. The parties agree on behalf of themselves and any person claiming by or through them that the sole and exclusive jurisdiction and venue for any litigation arising from or relating to this Agreement shall be the United States District Court for the District of New Jersey located in Newark, or the courts of the State of New Jersey located in Morris County; and each party thereby irrevocably submits to such jurisdiction and venue, and agrees not to assert any defense of inconvenient forum or otherwise contest such jurisdiction or venue. All materials remain the property of Subcontractor until paid in full. Subcontractor reserves the right to retake possession of materials at any time and any place.

Subcontractor has the right to add a Returned Payment Fee if a payment on clients account is returned for any reason. The Returned Payment Fee is $25 for the first occurrence and $35 for any additional occurrence(s) during the next six Billing Cycles; provided, however, that the Returned Payment Fee will not exceed the total payment due immediately prior to assessment of the fee, and will not exceed the amount of the payment being returned.

PERSONAL GUARANTEE:

In consideration for the credit extended to the above listed applicant, the undersigned hereby guarantees and agrees to be personally liable for all indebtedness incurred by the applicant through any of its authorized agents. If this guarantee is signed by more than one person, the word "undersigned" as used herein shall be deemed to refer to each of them individually. This guarantee and obligation includes the guarantor(s) Heirs, assigns, successors, executors, and administrators. I / We the undersigned guarantor(s) authorize you to obtain consumer credit reports for the purpose of evaluating personal credit history.

PLEASE NOTE:

A SIGNED COPY OF THIS PROPOSAL MUST BE RECEIVED AND WE MUST HAVE A CURRENT CREDIT APPLICATION ON FILE IN THIS OFFICE BEFORE ANY WORK MAY BE STARTED. PLEASE PRINT NAME UNDER SIGNATURE TO VERIFY IDENTITY. YOU MAY CANCEL THIS CONTRACT AT ANY TIME BEFORE MIDNIGHT OF THE THIRD BUSINESS DAY AFTER RECEIVING A COPY OF THIS CONTRACT. IF YOU WISH TO CANCEL THIS CONTRACT, YOU MUST EITHER : 1) SEND A SIGNED AND DATED WRITTEN NOTICE OF CANCELLATION BY REGISTERED OR CERTIFIED MAIL, RETURN RECEIPT REQUESTED; OR 2) PERSONALLY DELIVER A SIGNED AND DATED WRITTEN NOTICE OF CANCELLATION TO : 121 BARTLEY FLANDERS ROAD, FLANDERS, NJ 07836.

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This proposal is based on material cost as of date of proposal. Any change in material costs prior to execution of this agreement may result in changes to the proposal price.

This proposal is good for 15 days from prepared date above.
Your terms are Net 60 Days from Invoice Date

Purchaser Acceptance: _____ **DATE:** _____
Authorized Signature

_____
Please print name

Seller Approval: _____ **DATE:** **4/28/2025**
Frank Johnstone

PLEASE RETURN ALL PAGES OF THIS PROPOSAL

I understand that submitting this form constitutes electronic communications. I consent to send and receive electronic communications and agree that all agreements, notices, disclosures, and other communications that are provided or received electronically via email and on the website satisfy any legal requirement that such communications be in writing. I understand that the email address and IP address for this transaction will be recorded and if the signer is not linked to the email address and IP address the sender will be committing an act of fraud.

**** Spray Foam ****

We strive to provide exceptional workmanship and customer service. We ask that the application area be clear of debris and storage. It will be impossible to complete our work if debris or storage is in our work area. Air handlers may have to be turned off during our installation to prevent any airborne contaminants from entering the heating/cooling system. For health and safety reasons it is very important that no other trades are on the job/inside the house or building during our application. Product manufacturers recommend waiting for 24 hours after application before re-entering the home. This includes pets.

Code flame and smoke development ratings related to open and closed cell spray foam is a topic that can cause confusion. The conditions under which a thermal or iginition barrier is required are clearly specified in the International Building Code and outlines on the ICC ES Report for the type of foam to be installed. **When in doubt consult your local code official.**

Standard Contract Terms for the application of Spray Foam Insulation

a. DESIGN RESPONSIBILTY. Purchaser accepts design responsibility. Insulation contractor is not responsible for design flaws.

b. COMPLIANCE. Compliance with applicable federal, state, country, and local laws, building codes, rules, regulations, ratings, and permitting costs, fees, and taxes are the responsiblity of the purchaser.

c. JOB READY. Purchaser will be responsible for actual expenses incurred by insulation contractor as a result of Buyer's failure to have the contracted job ready for work when ordered for a specific date.

d. OVERSPRAY. It is expressly understood that as a normal part of the installation there may be some overspray and splattering of material on surafces in the areas including but not limited to wiring, plumbing, mechanical equipment or ductwork. These areas are not subject to cleanup by the contractor.

e. JOB SITE & ATTIC CONDITIONS. Attics/work area must be accessible, clean, and free of loose equipment, materials or other debris.

f. WIRES. All wires must be fastened into place per code, as expansion of the foam and trimming may damage incorrectly fastened wires. Contractor is not responsible for repairs due to this condition.

g. INACCESSIBLE WORK. Contractor is not responsible for incomplete coverage due to work areas which are inaccessible, blocked, or obstructed prior to our installation.

PLEASE NOTE: Due to ongoing material supply issues, the product installed may differ from the product proposed, however, the installed R-Values will meet the R-Values as specified.

Purchaser has read and understands contract terms.

Initials of Purchaser _____

Spray Foam RELEASE

I have been informed of the dangers and health hazards present during the application of spray foam insulation. I fully understand that I should not be in the building during the spraying process and for 24 hours after the application is complete. Contractors agree to communicate this information to their staff, all other contractors & subcontractors, and all homeowners as well as any person who may enter the area where foam is or has been applied.

THIS FORM MUST BE SIGNED AND RECEIVED BY OUR OFFICE BEFORE WORK CAN BEGIN.

Client Name

Client Signature Date

Job Address

Job Name

Thank you for the opportunity to work together!
Please call with any questions or concerns.

CERTIFICATE OF LIABILITY INSURANCE

DATE: (MM/DD/YYYY) 04/28/2025

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMENDS, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER

Willis Towers Watson Southeast Inc.
c/o 26 Century Blvd
P.O. Box 305191
Nashville, TN 372305191 USA

CONTACT NAME: COI Service Desk
PHONE (A/C, No. Ext): 614-727-1375
FAX (A/C, No.):
E-MAIL ADDRESS: COIServiceDesk@installed.net

INSURER(S) AFFORDING COVERAGE	NAIC #
INSURER A: Old Republic Insurance Company	24147
INSURER B: American Guarantee and Liability Insurance	26247
INSURER C:	
INSURER D:	
INSURER E:	
INSURER F:	

INSURER

Eastern Contractor Services, LLC
121 Bartley Flanders Road
Flanders, NJ 07836

COVERAGES

CERTIFICATE NUMBER: W36568814 **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OF CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES, LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
A	X COMMERCIAL GENERAL LIABILITY CLAIMS MADE [X] OCCUR GEN'L AGGREGATE LIMIT APPLIES FOR: POLICY [X] PRO-JECT [X] LOC OTHER	Y	Y	MWZY-314253-24	10/01/2024	10/01/2025	EACH OCCURENCE	$ 5,000,000
							DAMAGE TO RENTED PREMISES (Ea occurence)	$ 1,000,000
							MED EXP (Any one person)	$ 10,000
							PERSON & ADV INJURY	$ 5,000,000
							GENERAL AGGREGATE	$ 10,000,000
							PRODUCTS - COMP/OP AGG	$ 10,000,000
A	AUTOMOBILE LIABILITY X ANY AUTO X OWNED AUTOS ONLY [ ] SCHEDULED AUTOS X HIRED AUTOS ONLY X NON-OWNED AUTOS	Y	Y	MWTB-314252-24	10/01/2024	10/01/2025	COMBINE SINGLE LIMIT (Ea accident)	$ 5,000,000
							BODILY INJURY (Per person)	$
							BODILY INJURY (Per accident)	$
							PROPERTY DAMAGE (Per accident)	$
B	X UMBRELLA LIAB X OCCUR EXCESS LIAB CLAIMS-MADE DED X RETENTION $ 0	Y	Y	AUC 9314206-13	10/01/2024	10/01/2025	EACH OCCURENCE	$ 10,000,000
							AGGREGATE	$ 10,000,000
								$
A	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANYPROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBEREXCLUDED? Y/N (Mandatory in NH) No If yes, describe under DESCRIPTION OF OPERATIONS below	N/A	Y	MWC 314250-24	10/01/2024	10/01/2025	X PER STATUTE [ ] OTH-ER	
							E.L. EACH ACCIDENT	$ 1,000,000
							E.L. DISEASE - EA EMPLOYEE	$ 1,000,000
							E.L. DISEASE = POLICY LIMIT	$ 1,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)
Highrise Construction Solutions Inc., 161 Van Wagenen Avenue LLC, G.N. Management and Wagenen Management LLC are named as Additional Insureds as respects to General Liability and Auto Liability coverage as required by written contract.
Highrise Construction Solutions Inc., 161 Van Wagenen Avenue LLC, G.N. Management, Wagenen Management LLC are named as Additional Insureds as respects Umbrella Liability.

CERTIFICATE HOLDER

Montana Contracting
175 N Route 9W
Suite 7
CONGERS, NY 10920

Proof of Insurance

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES ARE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE Kevin Glasgow

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